



# Afghan Canadian Capital Society

جامعه مرکزی افغانهای کانادایی

**BYLAWS**



**“In the name of God, the Lord of the soul and wisdom”**

ما برای وصل کردن آمدیم    فی برای فصل کردن آمدیم

**"We have come to unite, not to separate."**

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|-----------------------------|------------------------------------------|
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## **Introduction**

The Afghan Canadian Capital Society (ACCS) was founded with the purpose of preserving the cultural heritage, languages, and values of Afghans residing in Canada. Rooted in community service and cultural continuity, ACCS operates as a non-profit, non-political, and independent community organization.

With the support of Afghan-Canadian residents in Ottawa and beyond, the Association is committed to building a welcoming and supportive environment through cultural, social, recreational, and educational programs—particularly for newcomers, youth, and families. ACCS believes that the preservation of Afghan identity in the diaspora is made possible through collective effort, shared responsibility, and community spirit.

These bylaws outline the governance, responsibilities, and operational structure of the Association and are intended to support its long-term growth, transparency, and accountability.

## Chapter 1 – Name, Purpose, and Status

### Article 1 – Name of the Organization

The name of the organization is **Afghan Canadian Capital Society (ACCS)**. In this document, it may be referred to as “the Association.”

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### Article 2 – Purpose

The purpose of the Association is to serve the Afghan Canadian community—particularly in Ottawa—through cultural, social, educational, and recreational programs. The Association is a non-profit, non-political, and community-based organization committed to:

- Preserving Afghan languages, culture, and values;
  - Supporting the well-being of Afghan newcomers and families;
  - Organizing cultural events and youth activities;
  - Promoting community unity and mutual support.
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### Article 3 – Definitions and Terminology

For the purposes of this bylaw, the following terms shall apply:

- **“Association”** refers to the **Afghan Canadian Capital Society (ACCS)**.
- **“Leadership Circle”** refers to the core leadership body of the Association. For the purposes of Ontario law and these bylaws, the Leadership Circle shall function as the **Board of Directors**.
- **“Members”** refers to individuals who meet the eligibility requirements outlined in Article 6 and are formally accepted as members of the Association.
- **“Teams”** refers to the functional working groups of the Association (e.g., Cultural Team, Finance and Coordination Team) formed to carry out specific programs and responsibilities. These may be referred to as “committees” where required by legal or funding processes, but will operate internally as “teams.”
- **“Founders”** refers to the original group of individuals who established the Association and formed the first Leadership Circle.

- **“Newcomer”** refers to an individual who has arrived in Canada within the last five years.
  - **“Volunteer”** refers to any person who contributes time or services to the Association without financial compensation.
  - **“Conflict of Interest”** refers to any situation in which a member’s personal, financial, or professional interests could improperly influence, or appear to influence, their responsibilities within the Association.
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## **Article 4 – Location and Scope**

The principal office of the Association shall be located in **Ottawa, Ontario**. The Association may establish other branches or regional representations throughout **Canada** as needed and approved by the Leadership Circle.

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## **Article 5 – Non-Profit and Independent Status**

The Association shall operate as a **non-profit, non-political, and independent** community organization. Its activities shall be guided by the interests and well-being of the Afghan Canadian community, without affiliation to any political party, government, or religious institution.

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## **Article 6 – Mission and Values**

The mission of the Association is to preserve Afghan culture, languages, and values while supporting Afghan Canadians—especially youth and newcomers—in building community, identity, and opportunity in Canada.

The Association is guided by the following values:

- Cultural preservation and expression
  - Community service and cooperation
  - Inclusivity and respect for diversity of backgrounds and beliefs
  - Transparency, fairness, and collective decision-making
  - Volunteerism and civic responsibility
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## **Article 7 – Visual Identity**

The Association may adopt a logo or symbol to represent its identity. Any official emblem shall be approved by the Leadership Circle and may include cultural and Canadian elements.

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## **Chapter 2 – Activities and Membership**

### **Article 8 – Activities and Programs**

To fulfill its mission, the Association may engage in the following community activities:

1. Offering language programs (e.g., mother tongue and English literacy)
  2. Organizing cultural and recreational events (e.g., Nawruz, Eid, storytelling, etc.)
  3. Supporting sports and youth programs
  4. Providing informal guidance and workshops for newcomers on topics like financial literacy, health access, and Canadian systems
  5. Collaborating with other local organizations to promote community building
  6. Promoting Afghan arts, music, and cultural identity in Canada
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### **Article 9 – Membership Eligibility**

Membership in the Association is open to any individual who:

1. Afghan national or have a meaningful connection to the Afghan community
  2. Is 18 years of age or older
  3. Supports the goals and values of the Association
  4. Submits a membership form and agrees to abide by the bylaws
  5. Pays any required membership dues or fees as determined by the Leadership Circle
  6. Has not been convicted of a serious criminal offence
  7. Commits to acting in good faith, with respect for others, and in alignment with the mission of the Association
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## Article 10 – Recognition of Members

The Association may formally recognize members who demonstrate outstanding dedication, integrity, or service to the community. Recognition may include:

- Public appreciation or written certificates
  - Invitations to take on additional leadership roles or responsibilities
  - Non-monetary tokens of appreciation (e.g., gifts, acknowledgements at events)
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## Article 11 – Member Responsibilities

Members of the Association are expected to:

1. **Uphold the mission, values, and bylaws** of the Association in all their involvement and public representation.
2. **Participate actively in community activities** by contributing to team efforts, attending meetings when possible, and completing assigned tasks or responsibilities in a timely and respectful manner.
3. **Treat fellow members with respect and integrity**, promoting a welcoming and inclusive environment for all.
4. **Pay membership dues** in a timely manner (if applicable).
5. **Safeguard the reputation and confidentiality of the Association**, including:
  - Respecting private or sensitive information shared within teams, meetings, or leadership settings;
  - **Protecting the privacy of community members who benefit from the Association's services, and not disclosing personal information of other members without consent;**
  - Refraining from misrepresenting the Association or speaking on its behalf without proper coordination;
  - Conducting oneself in ways that protect the public image, trust, and credibility of the Association.

6. **Report any misconduct, abuse, or serious concerns** to the responsible manager of their team or directly to the Leadership Circle. All reports will be treated with discretion and care.
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## Article 12 – Member Rights

Members in good standing have the right to:

1. **Access the programs and services** offered by the Association, including cultural events, educational sessions, and community support initiatives.
  2. **Provide input and suggestions** to the Leadership Circle or team leads regarding the development and improvement of the Association's activities.
  3. **Be considered for volunteer or team roles** based on interest, availability, and the needs of the Association.
  4. **Request access to annual summaries** of the Association's financial and operational activities.
  5. **Participate in future voting or decision-making processes**, should such mechanisms be introduced as the Association grows.
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## Article 13 – Suspension or Removal of Members

A member may be suspended or removed from the Association for any of the following reasons:

1. **Repeated or serious violations of the bylaws or shared values of the Association.**  
This includes ignoring agreed-upon rules or acting in ways that contradict the goals and mission of the organization.
2. **Engaging in illegal activities that may harm the Association or its members.**  
This includes any criminal acts under Canadian law that could damage the Association's reputation, affect its legal standing, or endanger the safety of its members or community.
3. **Misuse of the Association's name, funds, or resources for personal benefit.**  
This includes using the Association's social media, finances, equipment, or programs to promote personal business, political views, or self-interest without prior approval.
4. **Engaging in conduct that threatens the safety, unity, or well-being of members or disrupts the peace of Association activities or premises.**  
This includes, but is not limited to, harassment, verbal or physical altercations, or any form of

intimidation or bullying.

**5. Deliberate attempts to create conflict or division based on ethnicity, language, or political views.**

The Association promotes unity and mutual respect across all cultural and linguistic groups within the Afghan Canadian community.

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### **13.1 – Process for Suspension or Removal**

- The Leadership Circle will review any concerns fairly and respectfully before making a decision.
  - The member will be informed in writing of the issue and given an opportunity to respond.
  - A decision will be made by majority vote of the Leadership Circle.
  - If the member wishes to appeal, they may submit a written request for reconsideration. Members may submit an appeal within 15 days of notification.
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### **13.2 – Return of Property**

Upon suspension, removal, or resignation, members must return any materials, documents, or equipment belonging to the Association. They must also discontinue access to any accounts or systems used for Association work and may no longer represent the Association in any capacity.

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## **Article 14 – Conflict of Interest**

Members, volunteers, and Leadership Circle members must avoid situations where a conflict of interest, as defined in Article 3, may affect their decisions or responsibilities within the Association.

Any potential or actual conflict of interest must be disclosed to the Leadership Circle as soon as it arises. Individuals with a conflict may be asked to withdraw from related discussions or decisions to ensure fairness and transparency.

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## Chapter 3 – Governance and Organizational Structure

### Article 15 – Organizational Structure

**The governance of the Afghan Canadian Capital Society is built on a collaborative structure led by the Leadership Circle and supported by advisory and operational bodies, as described below.**

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#### 1. Leadership Circle

The Leadership Circle serves as the main decision-making body of the Association. It is responsible for strategic planning, oversight, and ensuring that the activities of the organization align with its mission and community needs. It provides direction to all teams and maintains overall organizational coordination and integrity.

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#### 2. Advisory Board

The Advisory Board consists of respected elders and experienced individuals from the Afghan-Canadian community. This board provides cultural insight, mediation support, and strategic guidance to the Leadership Circle and operational teams. Advisory Board members may also volunteer or participate in the activities of any team based on their experience and interests. The Advisory Board holds a consultative role and does not have formal decision-making authority.

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#### 3. Legal Department

The Legal Department operates independently from the Leadership Circle and operational teams. It exists to provide legal advice, support internal accountability, and protect the Association and its members in legal, ethical, or dispute-related matters. When needed, the Legal Department may also assist in drafting internal policies and advising on legal compliance.

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#### 4. Operational Teams

The core work of the Association is carried out by the following operational teams and departments, each of which is responsible for delivering services and programs that serve the Afghan-Canadian community:

- **Finance Department** – Manages budgeting, financial reporting, donor tracking, and relationships with Afghan businesses and sponsors.
- **Cultural Department** – Leads cultural programming and initiatives to promote Afghan values, traditions, and languages.

- **Events and Coordination Sub-Team** – Functions under the Cultural Department and is responsible for preparing, organizing, and managing the logistics of all events. This team also provides logistical support for activities organized by the Youth and Sports Team and the Community Engagement and Cooperation Team.
- **Youth and Sports Team** – Organizes recreational, sports, and youth-centered programs to promote healthy engagement and social connection.
- **Community Engagement and Cooperation Team** – Supports newcomers, assists with integration, and helps community members access available services and guidance.
- **Communications and Outreach Team** – Manages social media, announcements, and public communication on behalf of the Association. Collaborates with other teams to produce and publish content, especially cultural materials.

Each team may include a **Team Manager**, who provides leadership within the team and may also be a member of the Leadership Circle. In addition, teams may include one or more **Coordinators**, who help organize team activities, track volunteer involvement, and carry out assigned tasks.

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## Article 16 – Powers and Responsibilities of the Leadership Circle

The Leadership Circle is the central governing body of the Association. Its primary responsibility is to ensure that the goals, values, and operations of the organization are carried out in line with its vision and community needs. It provides oversight, coordination, and decision-making across all aspects of the Association’s work.

The Leadership Circle has the following powers and responsibilities:

1. **Strategic Direction** – Set the overall vision, mission, and strategic priorities for the Association.
2. **Team Oversight** – Support, guide, and evaluate the work of all operational teams and departments.
3. **Internal Coordination** – Ensure smooth communication and cooperation across teams.
4. **Policy and Procedures** – Develop, approve, and revise internal policies, codes of conduct, and procedures.
5. **Membership Management** – Approve new members, process resignations, and address concerns related to membership status.

6. **Conflict Resolution** – Address internal conflicts or disputes in collaboration with the Advisory Board when appropriate.
  7. **Expulsion or Disciplinary Action** – Make decisions on member suspension or expulsion based on violations of the bylaws or code of conduct.
  8. **Resource Allocation** – Approve budgets, allocate funding to teams, and monitor financial sustainability.
  9. **Public Representation** – Represent the Association in dealings with external stakeholders, including community partners, media, or institutions.
  10. **Bylaw Amendments** – Propose amendments to the bylaws as needed and initiate the appropriate approval process.
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## Article 17 – Operational Teams

The Afghan Canadian Capital Society carries out its activities through operational teams and departments. These teams are responsible for developing and implementing programs, events, and services in line with the Association's goals.

Each team operates under the guidance of a **Team Manager**, who may be a member of the Leadership Circle. The Team Manager is responsible for coordinating the team's activities, communicating with the Leadership Circle, and ensuring tasks are completed effectively and on time.

Each team may also include one or more **Coordinators**, who assist in day-to-day planning, volunteer engagement, logistics, and documentation.

Operational teams are accountable to the Leadership Circle and must provide periodic updates on their progress, needs, and challenges.

Teams are expected to:

- Collaborate with other teams where appropriate
- Follow the code of conduct and policies set by the Association
- Seek approval from the Leadership Circle for major initiatives, expenditures, or collaborations with outside organizations
- Maintain a clear record of activities, decisions, and resource usage

Each team has the flexibility to organize its internal work as long as it aligns with the mission and values of the Association.

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## **Article 18 – Changes to the Leadership Circle**

### **1. Eligibility**

New members may be invited to join the Leadership Circle if they have demonstrated a strong commitment to the values, goals, and ongoing activities of the Association.

### **2. Selection Process**

New members must be proposed by a current Leadership Circle member and approved by a two-thirds (2/3) majority of the Leadership Circle.

### **3. Term and Participation**

Leadership Circle members do not serve fixed terms but are expected to remain actively involved. Inactivity or repeated failure to participate in meetings or responsibilities may lead to removal or replacement through internal consensus.

### **4. Resignation and Replacement**

If a Leadership Circle member resigns or is removed, a replacement may be proposed and approved following the same selection process.

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## Chapter 4 – Decision-Making and Bylaw Management

### Article 19 – Decision-Making and Meetings

#### 1. Leadership Circle Meetings

The Leadership Circle shall meet regularly, as needed, to discuss organizational matters, evaluate team progress, and make strategic decisions. A minimum of four Leadership Circle meetings per year is recommended.

#### 2. Quorum for Decision-Making

A minimum of **three Leadership Circle members** must be present to make official decisions. If the Leadership Circle is expanded in the future, this number may be revised accordingly.

#### 3. Consensus-Based Decisions

The Leadership Circle strives for consensus in decision-making. When consensus cannot be reached, a vote may be held, with a simple majority (more than half) determining the outcome.

#### 4. Extraordinary Decisions

Major decisions, such as changes to the bylaws or dissolution of a team, require full participation of the Leadership Circle and agreement by at least **four out of five members**.

#### 5. Record Keeping

Meeting outcomes, major decisions, and action items shall be documented and stored securely for organizational reference and transparency.

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### Article 20 – Amendments to the Bylaws

The Leadership Circle may propose amendments to the bylaws of the Afghan Canadian Capital Society when necessary to reflect evolving needs, community priorities, or legal requirements.

A proposed amendment must be reviewed and discussed at a Leadership Circle meeting, and approved by **at least four out of five members** of the Leadership Circle. If the Leadership Circle is expanded in the future, this number may be revised accordingly.

All approved amendments shall be recorded and shared with members or teams affected by the change.

These bylaws are intended as a living framework and may be updated over time as the Association expands in scope or membership.

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## **Article 21 – Dissolution of the Association**

In the unlikely event that the Afghan Canadian Capital Society is no longer able to fulfill its goals, or becomes inactive for a prolonged period, the Leadership Circle may propose dissolution.

Dissolution requires agreement from **four out of five Leadership Circle members (Or 80% of the number of the Leadership Circle members, if number of members changed)** and consultation with the Advisory Board, if active.

Upon dissolution, any remaining funds or assets shall be transferred to another non-profit or charitable organization in Canada that serves a similar cultural or community-building purpose.

In the event of dissolution, any outstanding debts shall be settled using the Association's assets. No individual member shall be held personally liable for such debts unless they have personally guaranteed them or acted outside the scope of their legal duties.

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## Chapter 5 – Financial Oversight and Administration

### Article 22 – Financial Oversight and Transparency

#### 1. Fiscal Year

The fiscal year of the Association shall begin on **April 1** and end on **March 31** of the following year. The Leadership Circle may revise this schedule as needed in the future.

#### 2. Financial Records and Monthly Reporting

The **Finance Department** is responsible for tracking all financial activity, maintaining proper records, and preparing financial reports. This includes documenting income, expenses, donations, and other transactions.

The Finance Department shall prepare and share **monthly financial reports** with the Leadership Circle to ensure transparency and accountability.

#### 3. Annual Financial Statement

At the end of each fiscal year, the Finance Department shall prepare a comprehensive financial statement, including a balance sheet and income statement. This statement shall be reviewed by the Leadership Circle and made available to members upon request.

#### 4. Bank Account and Financial Authority

All funds shall be deposited into a Canadian bank account registered in the name of the Association.

The Leadership Circle shall assign at least two (2) designated signing authorities for financial transactions. No single individual shall authorize or withdraw funds independently.

#### 5. Audit or Financial Review

If required by law, by a funding agreement, or by vote of the Leadership Circle, the Association shall conduct an audit or financial review by a qualified accountant.

If not legally required, the Leadership Circle may still authorize an internal or external review to promote accountability and transparency.

#### 6. Use of Funds

All funds shall be used exclusively to support the programs, operations, and goals of the Association. Personal use of Association funds is strictly prohibited.

#### 7. Financial Misconduct and Accountability

Any inappropriate use of the Association's funds, including unauthorized personal use or financial mismanagement, will be taken seriously.

Such matters may lead to internal review by the Leadership Circle and, depending on the outcome, may result in corrective actions, including suspension of duties or membership.

In cases where legal or ethical obligations are involved, further steps may be taken in accordance with applicable laws.

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## **Article 23 – Funding Sources**

The Afghan Canadian Capital Society may be funded through a variety of sources to support its mission, programs, and operations. These funding sources may include:

- Membership fees or dues, as determined by the Leadership Circle;
- Voluntary donations from individuals, businesses, and community supporters;
- Grants from municipal, provincial, or federal government programs;
- Sponsorships from organizations or businesses that align with the values of the Association;
- Revenue from fundraising events, cultural programs, or educational workshops;
- Sale of items, publications, or services that promote the goals of the Association.

All funds received must align with the ethical standards and mission of the Association. The Leadership Circle and Finance Department shall ensure that all funding sources are transparent, properly documented, and used solely for the benefit of the Association and the Afghan-Canadian community it serves.

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## **Article 24 – Limitation of Liability and Indemnification**

Members of the Leadership Circle, Advisory Board, and operational teams shall not be personally liable for any debts, obligations, or liabilities of the Association.

No individual acting in good faith within the scope of their role shall be held personally liable for actions, decisions, or omissions made while performing their duties on behalf of the Association. The Association shall indemnify and hold harmless such individuals against any legal claims or liabilities arising from their authorized work, except in cases of gross negligence, willful misconduct, or criminal activity.